



CHAPTER cclviii.

An Act for making railways in the county of Lancaster for connecting the Southport and Cheshire Lines Extension Railway with the Liverpool Overhead Railway and for other purposes. A.D. 1903.
[14th August 1903.]

WHEREAS the making and maintaining of the railways by this Act authorised in the county of Lancaster to connect the Southport and Cheshire Lines Extension Railway with the Liverpool Overhead Railway would be of public and local advantage :

And whereas the persons in that behalf in this Act named with others are willing to undertake the same on the powers hereinafter contained being conferred upon them and it is expedient that they be incorporated into a company (hereinafter called "the Company") for that purpose :

And whereas it is expedient that the Company when incorporated be authorised to run over and use the Southport and Cheshire Lines Extension Railway as provided by this Act and that the working and other agreements hereinafter mentioned should be authorised :

And whereas it is expedient that the other powers contained in this Act be conferred on the Company :

And whereas it is expedient to authorise the payment of interest out of capital during the construction of the railways as hereinafter provided :

And whereas plans and sections showing the lines and levels of the railways authorised by this Act and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Lancaster

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A.D. 1903. — and are hereinafter respectively referred to as the deposited plans sections and books of reference :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title. 1. This Act may be cited as the *Seaforth and Sefton Junction Railway Act 1903.*

Incorporation of general Acts. 2. The Companies Clauses Consolidation Act 1845 Part I. (relating to cancellation and surrender of shares) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts the Lands Clauses Acts the Railways Clauses Consolidation Act 1845 and Part I. (relating to construction of a railway) and Part III. (relating to working agreements) of the Railways Clauses Act 1863 are (except where expressly varied by this Act) incorporated with and form part of this Act and the provisions of sections 18 to 23 inclusive of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority and shall be construed as if "local authority" were mentioned in those sections in addition to "company" or "society" Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority to which their revenues in respect of water or gas (as the case may be) are appropriated.

Interpretation. 3. In this Act the several works and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction The expression "the Company" means the Company incorporated by this Act the expressions "the railway" or "the railways" and "the undertaking" mean respectively the railways and the undertaking by this Act authorised.

Company incorporated. 4. George Henry Cox John Edward Rayner the Honourable Arthur Stanley and all other persons who have already subscribed to or shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall

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be and are hereby united into a Company for the purpose of making and maintaining the railways and for other the purposes of this Act and for those purposes shall be and are hereby incorporated by the name of the Seaforth and Sefton Junction Railway Company and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act.

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5. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the railways hereinafter described with all necessary and proper bridges viaducts embankments cuttings columns shafts lifts drains rails engines dynamos wires conductors electrical and other plant and apparatus roads ways approaches stations junctions sidings turntables buildings works and conveniences connected therewith or incidental thereto and may enter upon take and use such of the lands delineated on the said plans and described in the deposited books of reference as may be required for those purposes The railways hereinbefore referred to and authorised by this Act will be situate in the county of Lancaster and are—

Power to
make rail-
ways.

Railway No. 1 A railway 4 miles 3 furlongs and 1·1 chains in length commencing in the township of Maghull by a junction with the Southport and Cheshire Lines Extension Railway and terminating in the county borough of Bootle by a junction with the Liverpool Overhead Railway at the northern terminus of that railway :

Railway No. 2 A railway 3 furlongs 3·4 chains in length commencing in the township of Sefton by a junction with Railway No. 1 and terminating in the parish of Netherton by a junction with the Southport and Cheshire Lines Extension Railway.

6. The Company shall not under the powers of this Act construct on the shore of the estuary of the Mersey within the jurisdiction of the Mersey Commissioners any work without the previous consent of the commissioners to be signified in writing under the hand of the acting conservator of the Mersey and then only according to such plan and under such restrictions and regulations as he may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension

Works below
high-water
mark not
to be com-
menced with-
out consent
of Mersey
Commis-
sioners.

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A.D. 1903. the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this Act the Mersey Commissioners may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Mersey Commissioners and shall be recoverable accordingly as an ordinary debt or at the option of the Mersey Commissioners summarily as a civil debt.

Survey of
works by
Mersey Com-
missioners.

7. If at any time the Mersey Commissioners or the acting conservator of the Mersey on their behalf deems it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Company on in over through or across tidal lands or tidal waters or of the intended site of any such work within the jurisdiction of the Mersey Commissioners the Company shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Company to the said Mersey Commissioners and be recoverable accordingly as an ordinary debt or at the option of the Mersey Commissioners summarily as a civil debt.

Abatement
of work
abandoned
or decayed.

8. If a work constructed by the Company on in over through or across tidal lands or tidal waters in the estuary of the Mersey within the jurisdiction of the Mersey Commissioners is abandoned or suffered to fall into decay the Mersey Commissioners may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Company and the amount of such expense shall be a debt due from the Company to the said Mersey Commissioners and be recoverable accordingly as an ordinary debt or at the option of the Mersey Commissioners summarily as a civil debt.

For protec-
tion of Leeds
and Liver-
pool Canal
Company.

9. For the protection of the Leeds and Liverpool Canal Company (in this Act called "the canal company") the following provisions shall save so far as may at any time hereafter be otherwise agreed between the canal company and the Company have effect (namely):—

- (1) Railway No. 1 shall be carried across the canal towing-path works and lands of the canal company in the respective townships of Litherland and Netherton in the lines and at the points of crossings respectively shown on the deposited plans and (unless with the consent of the canal company under their common seal) not elsewhere:

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- (2) In carrying the railway across the canal towing-path and property of the canal company the Company shall not otherwise than by agreement with the canal company deviate from the lines of railway shown on the deposited plans or from the levels or modes of construction respectively shown on the deposited sections and the bridges shall respectively be constructed in all respects in accordance with the provisions hereinafter contained: A.D. 1903.
- (3) The Company shall not otherwise than by agreement purchase or take any lands of the canal company but the Company may purchase and take and the canal company may and shall sell and grant accordingly an easement or right of using the land required for the construction of the railway (with not more than two lines of rail) in the respective lines shown on the said plan:
- (4) Nothing herein contained shall prevent the Company from entering upon the lands and works of the canal company when and for such periods as may be necessary for the fulfilment of the Company's obligations under this Act:
- (5) The railway shall be carried over the canal towing-path and property of the canal company by means of good and substantial bridges of brick stone wood or iron to be constructed by the Company at their own expense:
- (6) Each bridge shall unless otherwise agreed be constructed with perpendicular foundation walls carried down to a depth of not less than nine feet below the top water level of the canal and with only one span or opening over the entire width of the canal towing-path and property of the canal company and the clear height of the underside of the arch or (as the case may be) beams or girders of each bridge above the top water level of the canal shall throughout the whole breadth of the span be not less than the respective heights specified in the said sections:
- (7) The space between the piers of each bridge (except so much thereof as the towing-path and property of the canal company will occupy) shall at all times after the completion of such bridge (except during necessary repairs or reconstruction) be left and preserved an open and uninterrupted navigable waterway:
- (8) The Company shall at their own expense maintain the said bridges and the works thereof respectively of the height and

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width and so constructed as aforesaid and in good repair at all times :

(9) If and whenever the height of either bridge or works shall by subsidence of the ground or otherwise be lowered below the height hereinbefore prescribed the Company shall at their own expense restore the same to that height as soon as reasonably may be :

(10) The Company shall make good all damage that may be occasioned to the works or property of the canal company by the construction renewal or want of repair of any of the Company's works or by any such subsidence as aforesaid but—

(A) In every case of pressing necessity ; and

(B) In every other case if for seven days after notice in writing thereof given to the Company by the canal company the Company neglect to proceed with due diligence to make good such damage ;

the canal company may if they think fit make good the damage and the amount expended by them in so doing shall be forthwith repaid to them by the Company :

(11) If and whenever by any act or omission of the Company any part of the canal or towing-path shall be obstructed or rendered dangerous to boats barges or other vessels navigating or using the canal the Company shall pay to the canal company as or by way of ascertained damages the sum of two hundred pounds for every day during which the obstruction or danger shall continue and so in proportion for any less time than a day Provided that nothing in this Act contained shall prevent the canal company or any owner of boats or barges from recovering from the Company (in addition to the ascertained damages hereinbefore mentioned) any special damage in excess of the sum of two hundred pounds per day that may be sustained by the canal company or any special damage that may be sustained by such owner in consequence of the stoppage or hindrance to the traffic upon the canal or in consequence of the works to be executed by the Company or by the canal company for the Company under the provisions hereinbefore contained or by reason of any such subsidence as aforesaid or on account of any other act or omission of the Company :

(12) All questions and differences which may at any time arise between the Company and the canal company as to the

construction or effect of this section or the performance observance non-performance or non-observance of any of the provisions thereof or any matters connected therewith or consequent thereon shall be determined by an arbitrator to be appointed by the Company and the canal company or (if for fourteen days after the question of difference arises those two companies do not agree upon an arbitrator) by the Board of Trade upon the application in writing of both or either of those companies.

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10. In constructing the railways by this Act authorised within the district of the urban district council of Waterloo-with-Seaforth (in this section called "the council") the Company shall notwithstanding anything in this Act contained conform to fulfil and observe the following provisions obligations regulations and restrictions and the same shall save so far as may at any time hereafter be otherwise agreed between the council and the Company have effect (that is to say):—

For protection of Waterloo-with-Seaforth Urban District Council.

- (1) The Company shall not break up the surface of any street or public place or construct any works therein or perform any operations which may obstruct endanger or in any way interfere with the traffic along through or in such street or public place except with the consent of the Council and subject to such conditions as they may impose:
- (2) Where the railway crosses over any street or road it shall be carried over the same by a bridge having a single span and no such span shall be constructed at any less height than is shown in the deposited sections and no stanchions columns or pillars shall be placed in any part of the carriage way or footway of any street or road:
- (3) All such spans shall be constructed and maintained so that the bottom thereof shall be as far as practicable water-tight and the Company shall at their own expense well and sufficiently light and keep lighted the understructure of such spans where the railway crosses any street to the satisfaction of the council:
- (4) In any case where any house or other building which is not to be entirely removed shall be severed by the Company the Company shall to the satisfaction of the council and with the consent of the owner build up and repair such house or building so as to prevent any unsightly appearance:
- (5) When by reason of the construction of the railway it becomes in the opinion of the council necessary or desirable

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that any lands of the Company unbuilt upon should be fenced off from any street or road fronting adjoining or abutting thereon the Company shall enclose such lands with walls or suitable fencing to the reasonable satisfaction of the council :

- (6) Where by reason of the execution of any powers of this Act it becomes in the opinion of the council necessary to construct or lay any sewer drain or pipe or to construct or lay additional sewers drains or pipes or any increased length thereof or to make alterations of existing sewers drains or pipes or to alter the level thereof or to construct any man-holes air-holes or other works or conveniences connected therewith or any culverts for carrying any sewers drains or pipes under the railway such works shall before the Company interfere with the existing sewers drains or pipes (subject as hereinafter mentioned) be carried out by and at the expense of the Company to the satisfaction of the council and in accordance with plans sections and specifications to be approved of by them :
- (7) When by reason of the construction of the said railways it may be necessary to intercept or interfere with any existing sewer drain or pipe and it is found impracticable to carry out the permanent alterations and reconstruction of such sewer drain or pipe before such interference takes place then the Company may with the consent of the council in the meantime intercept or interfere with such sewer drain or pipe provided that before so doing they construct at their own expense a temporary sewer drain or pipe to the satisfaction of the council of equal capacity to that to be interfered with and the Company shall maintain the same until the permanent works are completed But in carrying out such temporary or permanent work the Company shall in no case stop or interfere with the free flow of the sewage :
- (8) If at any time hereafter it becomes in the opinion of the council necessary to obtain access to any existing or substituted sewer drain or pipe which may in any way have been interfered with by the works of the Company the Company shall when requested by the council make and maintain such reasonable access to such sewer drain or pipe as the council shall reasonably require and the council shall by their officers workmen and servants be at liberty

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at all reasonable times and so as not in any way to prejudicially interfere with the use and working of the railway to use such means of access for any purpose for which it may be necessary :

- (9) If the Company require any common passage forming a secondary means of access to any property not acquired by the Company they shall before interfering with such passage provide to the reasonable satisfaction of the council a substituted secondary means of access to the property not so acquired :
- (10) The council their officials and assistants shall from time to time and at all reasonable times during the construction of the authorised works have full power to enter and inspect the progress and condition thereof to see that the provisions of this Act are complied with and the Company shall pay all reasonable costs incurred by the council in the supervision of the works during construction :
- (11) The council shall not be liable for any damage or injury which may be caused by the bursting overflowing or defects of the sewers drains and pipes of the council which may be laid across or near to the said railway unless the same be caused through the negligence of the council their contractors or servants :
- (12) Whenever by this section any work is required to be done by the Company and at their expense in connection with any sewer drain or pipe the Company shall seven days at least before commencing such work give the council notice in writing of their intention to do such work and if before the expiration of seven days after the service of such notice the council give notice in writing to the Company that the council will carry out the works or any portion thereof themselves then the Company shall not commence the works included in such notice but the same shall be carried out by the council with all reasonable despatch and at the expense of the Company. If such notice to carry out the works is given by the council then the costs thereof shall be paid by the Company to the clerk of the council within one calendar month after their being required so to do and in case any dispute shall arise between the council and the Company as to what the cost of the works has been such dispute shall be referred to an arbitrator to be appointed as hereinafter provided :

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- (13) In the construction of the railways and works by this Act authorised the Company shall not permit or suffer any cart or waggon or other vehicle employed in removing from or bringing to the said works any soil materials or plant to be loaded or unloaded or to wait in any part of the public thoroughfare and shall not permit or suffer any cart waggon or other vehicle to carry any soil excavated from the railways or works through the public streets except in carts or waggons so constructed and managed as to prevent any of such soil dropping therefrom and if the Company their contractors servants or agents commit any breach of this section they shall be liable to a penalty not exceeding forty shillings for each offence and any such penalty may be recovered in a summary manner before any court of summary jurisdiction :
- (14) The Company shall not on any lands in the district of the council erect any station or works for generating electrical or other mechanical power :
- (15) The Company shall not construct any station so that the same or any part thereof shall cause any interference with any street or road :
- (16) The Company shall not use dynamite gunpowder or any other explosive substance in the construction of the railway except in such quantities at such times and under such conditions as the council may reasonably prescribe :
- (17) Whenever the Company shall make an entrance or exit to a passenger station which is on the level of a street from or to such street they shall on the ground floor and for a height of not less than fifteen feet set back the wall of the station or other buildings fronting such street for the full width of such station or buildings to the extent of ten feet in depth from the line of the street and the space so left open shall be dedicated to the public and become part of the street accordingly and shall be flagged and (if necessary) channelled by and at the expense of the Company to the satisfaction of the council Provided that it shall be lawful for the Company to place on that space such columns not less than twenty feet apart as may be necessary to support any building they may erect over such space above the ground floor :
- (18) Whenever by this Act it is provided that anything may be done with the consent or approval of the council or shall not be done without such consent or approval such

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consent or approval shall not be unreasonably withheld and may be given subject to such reasonable conditions and provisions as the council may think fit to make and the giving of such consent or approval shall not prejudice any right of the council except as may be provided thereby or of any other body corporate or person to compensation under the provisions of this Act :

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(19) The Company shall from time to time pay to the council all district and other rates leviable by or payable to the council upon the respective assessments of any lands or property acquired by the Company under the powers and for the purposes of this Act or a proportion of such rates respectively from the time such lands or property shall be acquired by the Company until the Company's works are completed and assessed to such rates or until the same shall have been sold as surplus lands and the amount of such rates payable by the Company shall be computed according to the assessments of such lands or property in force at the time of such acquisition notwithstanding that the buildings thereon or forming part thereof may have been taken down :

(20) If any difference shall arise between the Company and the council under this section or as to the mode of giving effect thereto the settlement of which is not otherwise provided for the same shall from time to time be referred to a single arbitrator to be appointed on the application of either party in difference by the Board of Trade.

11.—(1) Whenever the mains or water pipes of the corporation shall be severed or interfered with by the works authorised by this Act and whenever in consequence of such works it is necessary for maintaining the supply of water to lay additional mains or water pipes such additional mains or water pipes shall previous to the severance or interference be made by the corporation at the expense of the Company.

For protection of corporation of Liverpool.

(2) If by reason of the execution of any of the powers of this Act any increased length of mains or water pipes shall become necessary the same shall be laid down by the corporation at the expense of the Company.

(3) Wherever the railway shall cross under or otherwise interfere with a public road in which the corporation are empowered to lay mains or pipes for the supply of water the Company shall in

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For protection of
Litherland
Urban District Council.

12. The following provisions for the protection and benefit of the Litherland Urban District Council (in this section called "the council") shall unless otherwise agreed between the council and the Company apply and have effect (that is to say):—

- (A) The Company shall carry Railway No. 1 over Field Lane by means of a bridge having a span of not less than forty feet between the abutments thereof and of a clear height of at least sixteen feet from the crown of the present road and shall lower the carriage way and footwalk underneath the said bridge to a depth of at least nine inches but not exceeding one foot with a gradient not steeper than one in thirty and shall reinstate the road with all necessary gullies and connections to the reasonable satisfaction of the surveyor of the council and in default the council may execute the necessary work and recover the cost of same from the Company:
- (B) The bridge shall be constructed and maintained so that the bottom thereof shall be as far as practicable water-tight:
- (C) The Company shall carry Sefton Road over Railway No. 1 by a bridge of not less than forty feet between the parapets:
- (D) The Company shall carry all footpaths within the district of the council intersected by Railway No. 1 shown upon the deposited plan over the said railway on the level by means of good and substantial bridges of brick stone wood or iron at least six feet in width in the clear and also provide a good and sufficient fence on each side of such bridge not less than five feet in height with suitable approaches to the reasonable satisfaction of the surveyor of the council:
- (E) The said bridges and all necessary works shall be constructed by the said Company at their own expense and the Company shall also at the like expense maintain the same and the works thereof respectively in good repair at all times.

For protection of Sefton
Rural District Council.

13. For the protection of the public roads and footpaths within the district of the rural district council for the rural district of Sefton in the county of Lancaster (in this Act called "the rural council") the following provisions shall save so far as may at

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any time hereafter be agreed between the rural council and the Company have effect (that is to say):— A.D. 1903.

- (1) The Company shall not commence any works which shall cause any diversion of or interfere with the traffic on any public road or footpath in the district of the rural council without first making at their own expense such arrangements for the passage of traffic as the rural council shall reasonably require :
- (2) The bridge for carrying the road called Sterrix Lane in the township of Orrell and Ford over the Railway No. 1 shall be so constructed by the Company as to admit of the road over the same being of a width of not less than thirty-six feet and the existing level of Sterrix Lane shall not be interfered with :
- (3) The bridges for carrying the public roads called Moss Lane in the township of Sefton and Moss Lane and Glovers Lane both in the township of Netherton over the Railway No. 1 shall be of such a width that the respective roads over the same and the approaches on both sides thereof respectively shall be as wide as the existing roads respectively and in no case of a width less than thirty feet and the gradient of every approach to the said bridges shall not be steeper than one in thirty :
- (4) The Railway No. 1 shall be carried over Coppy Lane in Netherton aforesaid and in altering the said Coppy Lane for that purpose the gradient of the said lane on the east side of the railway shall not be steeper than one in fifty and on the west side the gradient shall be as shown on the deposited plans The Company shall reinstate Coppy Lane so far as the same is interfered with by the works of the Company to the reasonable satisfaction of the rural council and the Company shall execute such works as may be reasonably required by the rural council to provide for the drainage of Coppy Lane in consequence of the alteration of the level of that lane :
- (5) The Company shall to the reasonable satisfaction of the rural council pave or macadamise the road over every bridge and the approaches (if any) to every bridge carrying a public road over the Railway No. 1 and shall channel and kerb every such road on one side (to be selected by the rural council) and shall set apart on the same side a space of six feet in width and shall pitch and cinder such space as a

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footpath and in the case of Sterrix Lane the Company shall (when reasonably required by the rural council) channel and kerb the other side of such lane and set apart on that side also a space of six feet in width and pitch and cinder the same as a footpath :

- (6) The Company shall erect an iron girder footbridge for carrying the public footpath leading from Sefton Road in Litherland to Sterrix Lane aforesaid over the Railway No. 1 and such footbridge shall be on the level of the existing footpath and shall be at least five feet in width in the clear with a parapet on each side not less than four feet in height :
- (7) The Company shall erect a brick or stone arched bridge for the purpose of carrying the Railway No. 2 over the footpath in Netherton aforesaid shown on the deposited plans and such bridge shall have a span of at least five feet and shall have a headway of not less than eight feet and the said footpath so far as the same is on the land of the Company shall be pitched and gravelled or cindered so that water may not accumulate thereon but may run freely off the same :
- (8) Where either of the railways crosses over any public road or footpath it shall be carried over the same by bridges having a single span and no stanchions columns or pillars shall be placed in any part of such road or footpath and every such bridge shall be constructed and maintained by the Company as far as practicable water-tight and in such a way as to reasonably prevent water from dropping or percolating on to the surface of every such road or footpath :
- (9) If the works by this Act authorised shall interfere with obstruct or prejudicially affect any plat culvert or drain in any public road or footpath in the district of the rural council the Company shall from time to time remove such obstruction therefrom and make good all damage done to the same and all works to be executed by the Company under this subsection shall be executed under the superintendence and to the reasonable satisfaction of the highway surveyor for the time being of the rural council :
- (10) The Company shall from time to time pay to the rural council all rates payable to the rural council or to the overseers on their behalf upon the respective assessments of any lands or property acquired by the Company under the powers and for the purposes of this Act or a proportion of

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such rates respectively from the time when such lands or property shall be acquired by the Company until the Company's works are completed and assessed to such rates or until the same shall have been sold as surplus lands : A.D. 1903.

- (11) If any difference shall arise between the Company and the rural council under this section or as to the mode of giving effect thereto the same shall from time to time be referred to a single arbitrator to be appointed (unless otherwise agreed upon) on the application of either party in difference by the Board of Trade and the costs of the reference and award shall be borne as such arbitrator shall direct.

14.—(1) Notwithstanding anything contained in this Act or shown on the deposited plans the Company shall not without the consent in writing of the Mersey Docks and Harbour Board under their common seal enter upon take or use any of the lands and property (A) numbered 1 and 2 on such plans in the township of Bootle-cum-Linacre or (B) numbered 165 166 167 168 169 and 170 on such plans in the township of Seaforth. For protection of Mersey Docks and Harbour Board.

(2) Nothing in this Act shall prejudice or affect any of the rights powers or privileges of the board under the various Acts of Parliament and agreements scheduled thereto affecting or relating to the Liverpool Overhead Railway or any lease granted by the board under such Acts.

(3) On the determination of the present tenancy or lease of the said Overhead Railway or the board exercising their rights of acquiring and taking possession of such railway under the powers of such Acts and agreements or lease the board may acquire and take possession of such railway and manage work deal with or dispose of the same notwithstanding anything contained in this Act and any lines laid in under this or any other Act to form a junction with the said Overhead Railway shall thereafter only remain in position so long as the board shall think fit.

15. For the protection of the Right Honourable Osbert Cecil Earl of Sefton or other the owner for the time being of the estates of the said earl in the townships of Sefton Orrell and Ford Netherton and Litherland in the county of Lancaster (in this and the two following sections called "the said earl") the following provisions shall unless otherwise agreed between the said earl and the Company have effect (that is to say) :— For protection of Earl of Sefton.

- (1) The said railways shall be constructed for their whole length where they pass through the lands of the said earl in

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such line within the limits of deviation as shall be prescribed by the said earl or his agent :

- (2) Previous to the opening of the railways or either of them the Company shall at their own cost make and complete and for ever after maintain a convenient passenger station at or near the point where Railway No. 1 crosses Sefton Road in the township of Litherland with suitable buildings approaches works and conveniences and shall at their own cost also make and complete and for ever after maintain a sufficient station for passengers and goods with suitable buildings sidings and junctions for goods traffic approaches works and conveniences at or near the point where Railway No. 1 crosses Coppy Lane in the township of Netherton and the Company shall provide such station accommodation and attendance as shall be proper for the convenience of the public resorting to both such stations :
- (3) The Company shall at their own cost if and when reasonably required by the said earl so to do the reasonableness of such request to be measured by the increase of the population of the immediate neighbourhood make complete and for ever after maintain a passenger station with suitable buildings approaches works and conveniences at Sterrix Lane in the township of Orrell and Ford and the Company shall provide such station accommodation and attendance as shall be proper for the convenience of the public resorting thereto :
- (4) The Company shall at their own cost when required construct and for ever after maintain two ordinary accommodation level crossings over the said Railway No. 1 between Sefton Moss Lane and Glover's Lane in the townships of Sefton and Netherton at points to be fixed by the said earl or his agent each with gates and approaches and such crossings and their approaches shall be of not less width than twelve feet clear between the gate posts and shall be laid flush with the top of the rails and shall be available at all times for the use of the said earl and his servants agents workmen and tenants for all the purposes of the estates of the said earl :
- (5) For the purpose of affording communication between the lands of the said earl severed by the said railways the Company shall at their own cost and to the reasonable satisfaction of the agent of the said earl construct drain gate fence and in the case of over bridges for ever after maintain so as to

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carry all classes of traffic the following bridges with all necessary approaches at such points on the railways in the townships of Litherland Netherton and Sefton as may before the commencement of construction of the said railways be determined by the agent of the said earl (viz.) :—

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Three under bridges between the Lancashire and Yorkshire Railway and the Leeds and Liverpool Canal in the township of Litherland Two of such bridges shall have a clear span on the square between the abutments of thirty-six feet and a headway of not less than seventeen feet and the third of such bridges shall have a clear span on the square between the abutments of forty-five feet and a headway of not less than seventeen feet ;

Two over bridges between Sefton Road and Sterrix Lane in the townships of Litherland and Orrell and Ford each having a clear span on the square between the abutments of thirty-six feet with approaches on each side of the railway of no steeper gradient than one in thirty-six ;

An under bridge between Glover's Lane and Bridge Lane in the township of Netherton having a clear span on the square between the abutments of thirty-six feet and a headway of not less than sixteen feet ;

An under bridge between Chapel Lane and the Mill Race in the township of Netherton having a clear span on the square between the abutments of sixteen feet and a headway of not less than sixteen feet ;

An under bridge between the Mill Race and the River Alt in the township of Sefton having a clear span on the square between the abutments of sixteen feet and a headway of not less than sixteen feet ;

An under bridge between the River Alt and the junction of Railway No. 1 with the Southport and Cheshire Lines Extension Railway in the township of Sefton having a clear span on the square between the abutments of sixteen feet and a headway of not less than twelve feet ;

An under bridge on Railway No. 2 between the River Alt and the junction of Railway No. 2 with the Southport and Cheshire Lines Extension Railway in the township of Sefton having a clear span on the square between the abutments of sixteen feet and a headway of not less than twelve feet :

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- (6) The Company shall pay for the sites of all approaches and the slopes thereto outside the boundary fences of the railway but they shall remain and be the property of the said earl who shall not use or permit the same to be used so as to injure or damage the works of the Company :
- (7) All approach roads and the roads over or under all the said bridges except the four under bridges each having a span of sixteen feet only shall be hard metalled roads properly drained with footwalks upon both sides seven feet wide properly pitched and gravelled or cindered kerbed channelled and fenced and gated and the approaches to the said four under bridges and the roads thereunder shall be drained hard metalled fenced and gated :
- (8) No advertisement except railway notices and advertisements shall be displayed on the outside of any bridge unless such bridge forms part of a passenger station on the estates of the said earl :
- (9) All drains which may be cut or injured by the Company's works shall be diverted and dealt with in such manner as the agent of the said earl shall reasonably require :
- (10) The said earl and his gamekeepers and servants and all other persons authorised by him shall at their own risk at all times have free access to the said railways or any part thereof when necessary in the pursuit of game or for warning off or taking poachers :
- (11) The Company shall at their own cost construct to the satisfaction of the agent of the said earl and for ever after maintain so as to carry all classes of traffic an over bridge with all necessary approaches between Field Lane and Sefton Road in the township of Litherland to carry a continuation of Victoria Road in a line to be laid down by the agent of the said earl over Railway No. 1 having a clear span on the square between the abutments of forty-five feet with approaches on each side of the railway of no steeper gradient than one in thirty :
- (12) Nothing in this section contained shall prejudice abridge or defeat the rights of the said earl or his tenants to compensation for land or easement acquired from or injury occasioned to him or them for or in consequence of the works or operations of the Company :
- (13) Any dispute or difference which may arise between the said earl and the Company with reference to the provisions

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of this section or the works to be carried out in pursuance thereof shall be determined by a sole arbitrator to be appointed by the said parties or in case of difference to be appointed by the President of the Institution of Civil Engineers on the written application of the said earl and the Company or either of them. A.D. 1903.

16. For the protection and for the benefit of the said earl and of the rural council and of the canal company the Company shall before the completion of the railway and works by this Act authorised at their own cost and to the satisfaction of the agent of the said earl and of the rural council and of the canal company do the following works:— Works for Earl of Sefton and others.

(1) Lay out level form sewer pitch with rock kerb channel pave or macadamise gate fence complete and perfect with a footway on one side thereof (to be selected by the said earl and the rural council) on land to be given by the said earl and the canal company for the purpose and maintain for a period of six months after the completion thereof shall have been certified by two justices a road thirty feet in width on the easterly side of the said Railway No. 1 between Bridge Lane and Coppy Lane in a line to be laid down by the agent of the said earl within the limits of deviation shown on the deposited plans such road to be carried over the Leeds and Liverpool Canal by an over bridge in a position to be approved by the canal company such bridge having a clear span on the square between the abutments of fifty feet and a headway of not less than eleven feet above the top water level of the canal and having a clear space between the fences thereof of thirty feet and the said road shall be made over its entire length on each side of the canal of an even gradient:

(2) The said bridge over the canal shall be constructed with steel or iron girders upon perpendicular foundation walls of stone or brick carried down to a depth of not less than nine feet below the top water level of the canal and shall be completed to the satisfaction of the said earl the rural council and the canal company and the provisions contained in subsections 10 11 and 12 of the section of this Act the marginal note of which is "For protection of Leeds and Liverpool Canal Company" shall mutatis mutandis extend and apply to the construction of the said bridge as if the same were herein repeated at length:

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- (3) Lay out level form sewer pitch with rock kerb channel pave or macadamise gate fence complete and perfect with a footway on one side thereof (to be selected by the said earl and the rural council) on land to be given by the said earl for the purpose and maintain for a period of six months after the completion thereof shall have been certified by two justices a road thirty feet in width from the junction of Moss Lane and Bridge Lane in Netherton to the junction of Sefton Moss Lane and Sterrix Lane in Sefton :
- (4) The last mentioned road shall be carried over Rimrose Brook by a properly constructed culvert of brick or stone of a diameter of not less than six feet :
- (5) Form in lieu of so much of the footpath leading from Sefton Road in Litherland to Sterrix Lane as lies between the said Railway No. 1 and Sterrix Lane a new footpath on land to be given by the said earl on the north-westerly side of and abutting upon the said Railway No. 1 of an uniform width of four feet properly pitched and cindered and the Company shall when required by the said earl so to do erect on the north-westerly side thereof a good and sufficient fence.

Further provisions as to works for Earl of Sefton and others.

17. On completion of the works specified in the last preceding section and when the justices shall have certified as in such section provided the said earl and the rural council shall pay to the Company the sum of seven hundred pounds to be provided by the said earl and the rural council in equal shares and the following provisions shall take effect:—

- (1) So much of Bridge Lane as lies between Coppy Lane and the point of intersection of the new road between Bridge Lane and Coppy Lane with Bridge Lane shall on the completion and adoption of the said new road be closed and shall become the property of the said earl and the swing bridge at Netherton carrying Bridge Lane over the Leeds and Liverpool Canal shall be closed and the canal company shall be discharged from all obligation to maintain the same and the Company shall be discharged from all obligation to make and maintain the bridge over Bridge Lane shown upon the deposited plans :
- (2) So much of Sefton Moss Lane as lies between Moss Lane and the junction of Sterrix Lane with Sefton Moss Lane shall on the completion and adoption of the said new road secondly mentioned in the last preceding section be closed

and become the property of the said earl and thereupon the Company shall pay to the said earl the sum of three hundred and fifty pounds and in consideration thereof the Company shall be discharged from all obligation to make and maintain the bridge over Sefton Moss Lane shown upon the deposited plans. The said earl shall have the right to set off the payment to be made by him under this section against the sum of three hundred and fifty pounds: A.D. 1903.

- (3) The Company shall be discharged from all obligation to make and maintain a footbridge to carry the said footpath leading from Sefton Road in Litherland to Sterrix Lane over the said Railway No. 1:
- (4) The bridge to be erected over the canal pursuant to subsection (1) of the last preceding section and the parapets thereof shall at all times be kept in repair by the canal company and after the expiration of six months from the date when the completion of the said new road between Bridge Lane and Copsy Lane shall have been certified as hereinbefore provided the same shall be kept in repair over its whole length by the rural council and the fences on each side thereof other than the parapets of the bridge shall be maintained by the said earl and the said new road secondly mentioned in the last preceding section shall after the expiration of six months from the date when the completion thereof shall have been certified as hereinbefore provided be kept in repair by the rural council and the fences on each side thereof shall be maintained by the said earl:
- (5) The rural council may for the purpose of making the payment to the Company prescribed by this section and of providing for the payment of the costs of the rural council of opposing the Bill for this Act and of raising the same borrow any sum not exceeding five hundred pounds and they may mortgage the common fund to be raised within the district of the rural council to secure the repayment of the moneys so borrowed and the following provisions shall have effect with respect thereto:—

(A) The powers of borrowing money by this Act given to the rural council shall not be restricted by any of the provisions of the Public Health Act 1875 and in calculating the amount which the rural council may borrow under that Act any sum which they may borrow under this Act shall not be reckoned;

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(B) A person lending money to the rural council shall not be bound to inquire as to the observance by the rural council of any provisions of this Act or be concerned to see that such money is wanted or that no more than is wanted is raised or be bound to see to the application or be answerable for any loss or misapplication of such money or any part thereof;

(c) The provisions of section 236 (Form of mortgage) section 237 (Register of mortgages) section 238 (Transfer of mortgages) and section 239 (Receiver may be appointed in certain cases) of the Public Health Act 1875 shall be applicable to the mortgages made by the rural council under this section;

(D) Subject to the provisions of this section the rural council shall pay off all money borrowed by them under the powers of this Act within forty years from the time or respective times of borrowing the same by one or both of the methods following (that is to say) :—

(i) By equal yearly or half-yearly instalments of principal and interest combined; or

(ii) By equal yearly or half-yearly instalments of principal and interest on the amount of principal from time to time remaining unpaid;

(E) If the rural council pay off any moneys borrowed by them under this Act otherwise than by instalments appropriations or annual repayments they may from time to time reborrow the same but all moneys so reborrowed shall be repaid within the prescribed period and shall be deemed to form the same loan as the moneys originally borrowed and the obligations of the rural council with respect to the repayment of the loan and the provision to be made for such repayment shall not be diminished by reason of such borrowing;

(F) The clerk to the rural council shall within twenty-one days after the expiration of each year during which any instalment is required to be paid by them under this Act transmit to the Local Government Board a return in such form as may be prescribed by that board and verified by statutory declaration if so required by them showing the amount which has been paid as an instalment during the year preceding the making of such return and the description of the securities upon which the same had

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been invested and the total amount remaining invested at the end of the year and in the event of any wilful default in making such return the clerk shall be liable to a penalty not exceeding twenty pounds which shall be paid to the Local Government Board and shall be recoverable by that board in the same manner as penalties recoverable under the Public Health Act 1875 in a summary manner may be recovered by parties aggrieved within the meaning of that Act. If it appear to the Local Government Board by such return or otherwise that the rural council have failed to pay any instalment the Local Government Board may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be paid or applied as in such order mentioned and such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the King's Bench Division of the High Court.

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18. In assessing the compensation payable to the Lancashire and Yorkshire Railway Company in respect of any lands taken by the Company under this Act the jury arbitrators or umpire shall take into consideration not only the value of the land taken but also any damage which may be suffered by that company by the construction of the railway across any lands of that company used or intended to be used as a goods yard and shall accordingly award compensation in respect of the same.

Compensation to Lancashire and Yorkshire Railway Company for crossing their goods yard.

19. For the protection of the Commissioners for putting in execution the Act of 19 George III. chapter 53 entitled "An Act for Draining Improving and Preserving the Lowlands in the Parishes of Altcar Sefton Halsall and Walton upon the Hill in the County Palatine of Lancaster" the following provisions shall unless otherwise agreed between the commissioners and the Company be observed and have effect (that is to say):—

For protection of River Alt Drainage Commissioners.

- (1) The Company shall carry Railway No. 1 over the River Alt and the Mill Dam in the parish of Sefton by means of bridges constructed with iron girders and brick or stone masonry or iron piers. The underside of the girders of each of such bridges shall be 4 feet above the higher bank at the point of crossing of the stream crossed by such bridge and the clear width between the piers of each of such bridges shall not be less than 40 feet leaving the present waterway undiminished. The Company shall provide a bridle path

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under each of the said bridges sufficient to enable the commissioners their officers and servants to cross under the railway on foot or on horseback but the Company shall not be required to make pave or drain such path :

- (2) The Company shall carry Railway No. 1 over the Maghull Hall Brook in such a manner as to leave the present waterway undiminished :
- (3) Except as is by this Act otherwise expressly provided nothing in this Act contained shall prejudice lessen or defeat the rights title interest powers and authorities of the said commissioners.

For protec-
tion of Lan-
cashire and
Yorkshire
Railway
Company.

20. For the protection of the Lancashire and Yorkshire Railway Company (in this section called "the Lancashire Company") the following provisions shall have effect (that is to say) :—

- (1) The Company shall carry Railway No. 1 over the Liverpool Crosby and Southport Railway and the whole width of the adjoining properties belonging or reputed to belong to the Lancashire Company and numbered on the deposited plans 1 in the township of Seaforth and 43 44 45 and 46 in the township of Litherland by means of a girder viaduct of three openings having such spans as shall be reasonably required by the principal engineer of the Lancashire Company and not more than three piers of the said viaduct shall be placed upon any part of the said railway or properties and those piers shall be of such dimensions as the said principal engineer may reasonably require One of such piers shall be placed at the extreme south-westerly boundary of the said property numbered 1 and immediately abutting on Sandy Road and the other two shall be in such situations (one being on each side of the Liverpool Crosby and Southport Railway and its existing sidings as shown on the deposited plans) as the said principal engineer may reasonably require The underside of the girders of the said viaduct throughout the whole width of the said railway and properties of the Lancashire Company shall be at least thirty-six feet above the existing level of the rails of the lines on the south-west side of the Liverpool Crosby and Southport Railway leading to the Lancashire Company's Seaforth goods yard at the point where those lines are crossed by Railway No. 1 as constructed :
- (2) The Company shall construct the portions of railway (including the viaduct hereinbefore referred to in this

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section) where the same will be made over or will interfere with any lands railway siding or other work belonging or leased to or worked by the Lancashire Company according to plans sections and specifications and of a quality and strength of material to be previously submitted to and approved in writing by the said principal engineer and the Company shall not commence the construction of the said portions of railway or enter upon or interfere with any lands or works belonging to or leased to or used by the Lancashire Company until such plans sections and specifications have been so submitted and approved. Provided always that if the said principal engineer shall for the period of one month refuse or neglect to approve such plans sections or specifications or shall disapprove the same and in case the said principal engineer and the engineer of the Company fail to agree or if any difference arise between them the said portions of railway and the said works shall be constructed according to plans sections and specifications to be submitted to and approved by an engineer to be agreed upon or in default of agreement to be appointed at the request of either the Company or the Lancashire Company by the President of the Institution of Civil Engineers : A.D. 1903.

- (3) The said portions of railway and all works necessary or incident to the construction thereof or affecting the property or works of the Lancashire Company shall be executed by and in all things at the expense of the Company and under the superintendence and to the reasonable satisfaction of the said principal engineer :
- (4) The Company shall take all proper precautions in the execution of their works to prevent any interference with the free and uninterrupted and safe use in the ordinary manner and at the ordinary rate of speed of any railway or siding or other work belonging to or leased to the Lancashire Company :
- (5) During the construction of the railway over and adjoining and near to or affecting the railway property and works of the Lancashire Company the Company shall bear and on demand pay to the Lancashire Company all reasonable expense of employment by them of a sufficient number of inspectors watchmen and flagmen to be appointed by that company for watching their railway property and works with reference to and during the execution of the

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intended works and for preventing as far as may be all interference obstruction danger and accident which may arise from any of the operations or from the acts or defaults of the Company or their contractors or any person or persons in the employment of the Company or their contractors with reference thereto or otherwise :

- (6) If by reason of the construction of the works of the Company it shall become necessary to specially add to or alter any signal cabins signals or other similar works on the railway of the Lancashire Company the Lancashire Company may make such additional alterations and the reasonable expense of such additions and alterations shall be repaid by the Company on demand and the cost of maintaining and working any additional signal cabins and signals or other similar works and a fair proportion of the cost of maintaining and working any altered signal cabins signal posts signals or other similar works shall at the end of every half-year be repaid by the Company to the Lancashire Company :
- (7) The Company shall at all times maintain the said portions of railway and all the works connected therewith and incident thereto by which the railway shall be carried over or which shall adjoin the railway works and lands of the Lancashire Company in substantial repair and good order to the reasonable satisfaction in all respects of the said principal engineer and if and whenever the Company fail so to do the Lancashire Company may make and do in and upon as well the lands of the Company as their own lands all such works repairs and things as they may reasonably think requisite in that behalf and the sum from time to time certified by the said principal engineer to be the reasonable amount of such expenditure shall be repaid to the Lancashire Company by the Company :
- (8) If by reason of the execution or failure of any of the works of the Company or any act or omission of the Company or of their contractors or of any person in the employment of the Company or of their contractors or otherwise any railway siding or other work belonging or leased to or worked by the Lancashire Company shall be injured or damaged such injury or damage shall be forthwith made good by the Company at their own expense or in the event of their failing so to do then the Lancashire Company may make good the same and the reasonable expenses thereof shall be

repaid to the Lancashire Company by the Company on demand and the Company shall indemnify the Lancashire Company against all losses which the Lancashire Company may sustain and shall pay all costs charges and expenses which the Lancashire Company may be put to or incur by reason of the execution or failure of any of the works of the Company or any act or omission of the Company or their contractors or any person in the employment of the Company or their contractors or otherwise : A.D. 1903.

- (9) If in the opinion of the Lancashire Company or (in the case of difference between them and the Company) in the opinion of an arbitrator to be appointed as hereinafter provided it shall be necessary for the Lancashire Company to purchase or pay compensation for any minerals required to be left unworked then (A) if the same have to be left unworked for the protection and safety of any works constructed under the powers of this Act the Company shall on demand pay to the Lancashire Company all costs and expenses incurred by them in relation to any such purchase or payment of compensation or (B) if the same have to be left unworked for the protection and safety of the railway works or property of the Lancashire Company as well as of the said works to be constructed under the powers of this Act the Company shall on demand pay to the Lancashire Company a fair proportion of the costs and expenses incurred by them in relation to any such purchase or payment of compensation and the proportion of such costs and expenses payable by the Company shall in case of difference be determined by arbitration as hereinafter provided :
- (10) If at any time hereafter the Lancashire Company shall be desirous of using lands now belonging to them for the purpose of extending widening or altering their railways or works the Company shall give to the Lancashire Company all proper and reasonable facilities for that purpose notwithstanding any easement which the Company may have acquired from the Lancashire Company under the next following subsection :
- (11) The Company shall not (except with the previous consent of the Lancashire Company under their common seal) purchase or acquire any of the lands or property of the Lancashire Company but the Company may purchase and take and the Lancashire Company shall sell and grant

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accordingly an easement or right of using so much of the lands of the Lancashire Company as may be necessary for the construction of the railway in accordance with the provisions of this section :

(12) If any difference shall arise between the Company and the Lancashire Company or their respective engineers touching this section or anything to be done or not to be done thereunder or any money to be paid thereunder such difference shall be referred to and be determined by an engineer to be mutually nominated by such respective engineers or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of the Company or the Lancashire Company :

(13) The Company and the Lancashire Company may agree for any variation or alteration in the works in this section provided for or in the manner in which the same shall be executed :

(14) The lands of the Lancashire Company referred to in this section are the lands mentioned in the first subsection hereof and the lands numbered on the deposited plans 170 in the township of Seaforth.

Capital.

21. The capital of the Company shall be two hundred and seventy thousand pounds in twenty-seven thousand shares of ten pounds each.

Shares not
to be issued
until one
fifth paid.

22. The Company shall not issue any share created under the authority of this Act nor shall any such share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share is paid in respect thereof.

Calls.

23. One fifth of the amount of a share shall be the greatest amount of a call and two months at least shall be the interval between successive calls and three fourths of the amount of a share shall be the utmost aggregate amount of the calls made in any year upon any share.

Power to
divide shares.

24. Subject to the provisions of this Act the Company with the authority of three fourths of the votes of the shareholders present in person or by proxy at a general meeting of the company specially convened for the purpose may divide any shares in their capital into half shares of which one shall be called " preferred half share " and the other shall be called " deferred half share " but the company shall not divide any share under the authority of this Act unless and until not less than sixty per centum upon such share

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has been paid up and upon every such division fifty per centum upon the entire share shall be carried to the credit of the deferred half share (being the whole amount payable thereon) and the residue to the credit of the preferred half share. A.D. 1903.

25. The dividends which would be payable on any divided share if the same had continued an entire share shall be applied in payment of dividends on the two half shares in manner following (that is to say) First in payment of dividend after such rate not exceeding six per centum per annum as shall be determined once for all at a general meeting of the Company specially convened for the purpose on the amount for the time being paid up on the preferred half share and the remainder (if any) in payment of dividend on the deferred half share and the Company shall not pay any greater amount of dividend on the two half shares than would have been payable on the entire share if the same had not been divided. Dividends on half shares.

26. Each preferred half share shall be entitled out of the profits of each year to the dividend which may have been attached to it by the Company as aforesaid in priority to the deferred half share bearing the same number but if in any year ending the thirty-first day of December there shall not be profits available for the payment of the full amount of dividend on any preferred half share for that year no part of the deficiency shall be made good out of the profits of any subsequent year or out of any other funds of the Company. Dividends on preferred half shares to be paid out of profits of year only.

27. Forthwith after the creation of any half shares the same shall be registered by the directors and each half share shall bear the same number as the number of the entire share certificate in respect of which it was issued and the directors shall issue certificates of the half shares accordingly and shall cause an entry to be made in the register of the entire shares of the conversion thereof but the directors shall not be bound to issue a certificate of any half share until the certificate of the existing entire share be delivered to them to be cancelled unless it be shown to their satisfaction that such certificate is destroyed or lost and on any certificate being so delivered up the directors shall cancel it. Half shares to be registered and certificates issued.

28. The terms and conditions on which any preferred half share or deferred half share created under this Act is issued shall be stated on the certificate of each such half share. Terms of issue to be stated in certificates.

29. The provisions of the Companies Clauses Consolidation Act 1845 with respect to the forfeiture of shares for non-payment Forfeiture of preferred half shares.

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A.D. 1903. — of calls shall apply to all preferred half shares created under the authority of this Act and every such preferred half share shall for that purpose be considered an entire share distinct from the corresponding deferred half share and until any forfeited preferred half share shall be sold by the directors all dividends which would be payable thereon if the same had not been forfeited shall be applied in or towards payment of any expenses attending the declaration of forfeiture thereof and of the arrears of calls for the time being due thereon with interest.

Preferred half shares not to be cancelled or surrendered.

30. No preferred half share created under the authority of this Act shall be cancelled or be surrendered to the Company.

Half shares to be half shares in capital.

31. The several half shares under this Act shall be half shares in the capital of the Company and every two half shares (whether preferred or deferred or one of each) held by the same person shall confer such a right of voting at meetings of the Company and (subject to the provisions hereinbefore contained) shall confer and have all such other rights qualifications privileges liabilities and incidents as attach and are incident to an entire share.

Power to borrow on mortgage.

32. The Company may borrow on mortgage of the undertaking any sum not exceeding in the whole ninety thousand pounds but no part thereof shall be borrowed until the whole capital of two hundred and seventy thousand pounds is issued and accepted and one half thereof is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that the whole of such capital has been issued and accepted and that one half thereof has been paid up and that not less than one fifth part of the amount of each separate share in such capital has been paid on account thereof before or at the time of the issue or acceptance thereof and that such capital was issued *bonâ fide* and is held by the persons to whom the same was issued or their executors administrators successors or assigns and that such persons or their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which shall be sufficient evidence thereof.

Appointment of a receiver.

33. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of

principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole. A.D. 1903.

34. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock. Debenture stock.

35. If any money is payable to a shareholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company. Receipt in case of person not *sui juris*.

36. All moneys raised under this Act whether by shares debenture stock or borrowing shall be applied only to the purposes of this Act to which capital is properly applicable. Application of moneys.

37. The first ordinary meeting of the Company shall be held within twelve months after the passing of this Act and the quorum for all meetings whether ordinary or extraordinary shall be at least five shareholders holding not less than one twentieth of the amount of capital from time to time paid up. First meeting of Company and quorum for meetings.

38. The number of directors shall be five but the Company may vary the number provided that the number be never less than three nor more than seven. Number of directors.

39. The qualification of a director shall be the possession in his own right of not less than fifty shares. Qualification of directors.

40. The quorum of a meeting of directors shall be three. Quorum of meeting of directors.

41. George Henry Cox John Edward Raynor and three persons to be nominated by them and consenting to such nomination shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this First directors.

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A.D. 1903. — Act or nominated as aforesaid or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act or nominated as aforesaid being (if they continue qualified) eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the place of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act.

Lands for extraordinary purposes.

42. The quantity of land to be taken by the Company by agreement for the extraordinary purposes mentioned in the Railways Clauses Consolidation Act 1845 shall not exceed ten acres but nothing in that Act or in this Act shall exempt the Company from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land so taken.

Period for compulsory purchase of lands.

43. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Owners may be required to sell parts only of certain lands and buildings.

44. And whereas in the construction of the railways and works hereby authorised or otherwise in exercise of the powers of this Act it may happen that portions only of the houses or other buildings or manufactories shown on the deposited plans may be sufficient for the purposes of the same and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore notwithstanding section 92 of the Lands Clauses Consolidation Act 1845 the owners of and other persons interested in the houses or other buildings or manufactories described in the First Schedule to this Act and whereof parts only are required for the purposes of this Act may if such portions can in the opinion of the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of such properties without material detriment thereto be required to sell and convey to the Company the portions only of the premises so required without the Company being obliged or compellable to purchase the whole or any greater

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portion thereof the Company paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise. A.D. 1903.

45. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Persons under disability may grant easements &c.

46. And whereas in order to avoid in the execution and maintenance of any works authorised by this Act injury to the houses and buildings within one hundred feet of the railways it may be necessary to underpin or otherwise strengthen the same Therefore the Company at their own costs and charges may and if required by the owners or lessees of any such house or building shall subject as hereinafter provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say):— Company empowered or may be required to underpin or otherwise strengthen houses near railway.

- (1) At least ten days' notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or building so intended or so required to be underpinned or otherwise strengthened:
- (2) Each such notice if given by the Company shall be served in manner prescribed by section 19 of the Lands Clauses Consolidation Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the principal office of the Company:
- (3) If any owner lessee or occupier of any such house or building or the Company as the case may require shall within seven days after the giving of such notice give a counter-notice in writing that he or they as the case may be disputes the necessity of such underpinning or strengthening the question of the necessity shall be referred to the arbitration of an engineer to be agreed upon or in case of difference appointed at the instance of either party by the Board of Trade;

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- (4) Such referee shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Company may and shall proceed forthwith so to underpin or strengthen the said house or building :
- (5) The Company shall be liable to compensate the owners lessees and occupiers of every such house or building for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this enactment :
- (6) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Company such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against further injury arising from the execution or use of the works of the Company then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the referee the Company shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof :
- (7) Nothing in this enactment contained nor any dealing with any property in pursuance of this enactment shall relieve the Company from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act :
- (8) Every case of compensation to be ascertained under this enactment shall be ascertained according to the provisions of the Lands Clauses Acts :
- (9) Nothing in this section shall repeal or affect the application of section 92 of the Lands Clauses Consolidation Act 1845.

Restrictions
on displacing
persons of
labouring
class.

47.—(1) The Company shall not under the powers of this Act purchase or acquire in any borough or other urban district and elsewhere than in any borough or urban district any parish ten or more houses which on the fifteenth day of December last were or

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have been since that day or shall hereafter be occupied either wholly or partly by persons belonging to the labouring class as tenants or lodgers unless and until the Company— A.D. 1903.

(A) Shall have obtained the approval of the Local Government Board to a scheme for providing new dwellings for such number of persons as were residing in such houses on the said fifteenth day of December or for such number of persons as the Local Government Board shall after inquiry deem necessary having regard to the number of persons on or after that date residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses or to the place of employment of such persons and to all the circumstances of the case ; and

(B) Shall have given security to the satisfaction of the Local Government Board for the carrying out of the scheme.

(2) The approval of the Local Government Board to any scheme under this section may be given either absolutely or conditionally and after the Local Government Board have approved of any such scheme they may from time to time approve either absolutely or conditionally of any modifications in the scheme.

(3) Every scheme under this section shall contain provisions prescribing the time within which it shall be carried out and shall require the new dwellings proposed to be provided under the scheme to be completed fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced :

Provided that the Local Government Board may dispense with the last-mentioned requirement subject to such conditions (if any) as they may see fit :

(4) Any provisions of any scheme under this section or any conditions subject to which the Local Government Board may have approved of any scheme or of any modifications of any scheme or subject to which they may have dispensed with the above-mentioned requirement shall be enforceable by a writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(5) If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house or houses in contravention of the requirements of the scheme they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty

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A.D. 1903. shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

(6) For the purpose of carrying out any scheme under this section the Company may appropriate any lands for the time being belonging to them or which they have power to acquire and may purchase such further lands as they may require and for the purpose of any such purchase sections 176 and 297 of the Public Health Act 1875 shall be incorporated with this Act and shall apply to the purchase of lands by the Company for the purposes of any scheme under this section in the same manner in all respects as if the Company were a local authority within the meaning of the Public Health Act 1875 and the scheme were one of the purposes of that Act.

(7) The Company may on any lands belonging to them or purchased or acquired under this section or any Provisional Order issued in pursuance of this section erect such dwellings for persons of the labouring class as may be necessary for the purpose of any scheme under this section and may sell demise or let or otherwise dispose of such dwellings and any lands purchased or acquired as aforesaid and may apply for the purposes of this section to which capital is properly applicable or any of such purposes any moneys which they may be authorised to raise or apply for the general purposes of their undertaking :

Provided that all lands on which any buildings have been erected or provided by the Company in pursuance of any scheme under this section shall for a period of twenty-five years from the date of the scheme be appropriated for the purpose of such dwellings and every conveyance demise or lease of such lands and buildings shall be endorsed with notice of this enactment :

Provided also that the Local Government Board may at any time dispense with all or any of the requirements of this subsection subject to such conditions (if any) as they may see fit.

(8) Notwithstanding anything to the contrary in section 157 of the Public Health Act 1875 the provisions of that section and of section 155 of the same Act and the provisions of section 3 of the Public Health (Buildings in Streets) Act 1888 shall apply to buildings erected or provided by the Company for the purpose of any scheme under this section.

(9) The Local Government Board may direct any inquiries to be held which they may deem necessary in relation to any scheme

under this section and for giving effect to any of the provisions of this section and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that board under the Public Health Act 1875.

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(10) The Company shall pay to the Local Government Board a sum to be fixed by that board in respect of the preparation and issue of any Provisional Order in pursuance of this section and any expenses incurred by that board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector and a sum to be fixed by that board not exceeding three guineas a day for the services of such inspector.

(11) Any houses purchased or acquired by the Company for or in connection with any of the purposes of this Act whether purchased or acquired in exercise of the powers conferred by this Act or otherwise which may have been occupied by persons of the labouring class within five years before the passing of this Act shall for the purposes of this section be deemed to have been acquired under the powers of this Act and to have been occupied on the fifteenth day of December last by the same number of persons belonging to the labouring class as were occupying the said houses at the date of their acquisition. Provided that if the Local Government Board are unable to ascertain the number of such persons who were then occupying the said houses the said houses shall be deemed to have been occupied by such number of such persons as in the opinion of the Local Government Board they might have been sufficient to accommodate.

(12) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

48. If the railways are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the railways or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Period for
completion
of works.

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Railways
may be
worked by
electrical
power.

49. Subject to the provisions of this Act and of any regulations to be prescribed by the Board of Trade (in this Act referred to as "the Board of Trade Regulations") the Company may and in regard to passenger traffic shall work the traffic on the railways by electrical power and for that purpose may lay down along the railways and maintain and use mains lines and apparatus for transmitting electrical energy.

Lands for
generating
station.

50. After the Company have acquired the lands described in the Second Schedule to this Act or any part thereof they may construct thereon a station or stations for generating electrical energy and may erect thereon buildings and use dynamos engines and other apparatus and things necessary or proper for the generation of electrical energy or the working of railways thereby Provided that if the Company shall construct any station for generating electrical energy upon lands other than those described in the Second Schedule the Company shall not be exonerated from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on such lands.

Provisions as
to use of elec-
trical power.

51. The following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the carriages :—

(1) The Company shall employ either insulated returns or uninsulated metallic returns of low resistance :

(2) The Company shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :

(3) The electrical power shall be used only in accordance with the Board of Trade Regulations and in such regulations provisions shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and

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the currents therein whether such lines do or do not use the earth as a return : A.D. 1903.

- (4) The Company shall be deemed to take all reasonable and proper precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Company either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade Regulations and in prescribing such means the board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wires lines or apparatus or the currents therein unless in the construction erection maintaining and working of such wires lines and apparatus all reasonable and proper precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (6) If any difference arises between the Company and any other party with respect to anything in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the board by an arbitrator to be appointed by the board and the costs of such determination shall be in the discretion of the board or of the arbitrator as the case may be :
- (7) The Company using electrical power contrary to the provisions of this Act or of the Board of Trade Regulations shall for every such offence be subject to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence continues after conviction thereof Provided always that whether any such penalty has been recovered or not the Board of Trade if in their opinion the Company in the use of electrical power under the authority of this Act have made default in complying with the provisions of this Act or the Board of Trade Regulations may by order direct the Company to cease to use

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electrical power and thereupon the Company shall cease to use electrical power and shall not again use the same unless with the authority of the Board of Trade and in every such case the Board of Trade shall make a special report to Parliament notifying the making of such order:

- (8) The expression "Company" in this section includes licencees and any person owning working or running carriages over any railway of the Company.

For protection of
Postmaster-
General.

52. In the event of the railways or any part thereof being worked by electricity the following provisions shall have effect:—

- (1) The Company shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein. Any difference which arises between the Postmaster-General and the Company as to compliance with this subsection shall be determined by arbitration:
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Company of their electric lines and works or by the working of the undertaking of the Company the Company shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection:
- (3) Before any electric line is laid down or any act or work for working the railways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Company or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Company and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the

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purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster-General and the Company as to any requirement so made shall be determined by arbitration : A.D. 1903.

- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Company is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Company's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Company enter any of the Company's works for the purpose of inspecting the Company's plant and the working of the same and the Company shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Company pursuant to the Board of Trade Regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Company or their agents the Company shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Company or their agents to a fine under this section if they satisfy the Court having cognisance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraphic office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by

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means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :

- (8) For the purposes of this section and subject as therein provided sections two ten eleven and twelve of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections thirty to thirty-two both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Company or their agents were a company within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Company by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression "the Company" includes their lessees and any person owning working or running carriages on any of the railways of the Company.

Deposit
money not
to be repaid
except so far
as railway
opened.

53. Whereas pursuant to the standing orders of both Houses of Parliament and to the Parliamentary Deposits Act 1846 a sum of twelve thousand six hundred and thirty pounds being five per centum upon the amount of the estimate in respect of the railways has been deposited with the Paymaster-General for and on behalf of the Supreme Court in respect of the application to Parliament for this Act (which sum is referred to in this Act as "the deposit fund") Be it enacted that notwithstanding anything contained in the said Act the deposit fund shall not be paid or transferred to or on the application of the person or persons or the majority of the persons named in the warrant or order issued in pursuance of the said Act or the survivors or survivor of them (which persons survivors or survivor are or is in this Act referred to as "the depositors") unless the Company shall previously to the expiration of the period limited by this Act for completion of the railway open the same for the public conveyance of passengers and if the Company shall make default in so opening the railway the deposit fund shall be

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applicable and shall be applied as provided by the next following section Provided that if within such period as aforesaid the Company open any portion of the railway for the public conveyance of passengers then on the production of a certificate of the Board of Trade specifying the length of the portion of the railway opened as aforesaid and the portion of the deposit fund which bears to the whole of the deposit fund the same proportion as the length of the railway so opened bears to the entire length of the railway the High Court shall on the application of the depositors order the portion of the deposit fund specified in the certificate to be paid or transferred to them or as they shall direct and the certificate of the Board of Trade shall be sufficient evidence of the facts therein certified and it shall not be necessary to produce any certificate of this Act having passed anything in the above-mentioned Act to the contrary notwithstanding. A.D. 1903.

54. If the Company do not previously to the expiration of the period limited for the completion of the railway complete the same and open it for the public conveyance of passengers then and in every such case the deposit fund or so much thereof as shall not have been paid to the depositors shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit And if no such compensation is payable or if a portion of the deposit fund has been found sufficient to satisfy all just claims in respect of such compensation then the deposit fund or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the undertaking has been abandoned be paid or transferred to such receiver or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the depositors Provided that until the deposit fund has been repaid or retransferred to the depositors or has become otherwise applicable as hereinbefore mentioned any interest or dividends accruing thereon Application of deposit.

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A.D. 1903. shall from time to time and as often as the same shall become payable be paid to or on the application of the depositors.

Tolls. **55.** The Company may demand and take for the use of the railways by any other company or person with engines and carriages such reasonable tolls as they think fit.

Rates for merchandise. **56.** The classification of merchandise traffic including perishable merchandise by passenger train and the schedule of maximum rates and charges applicable thereto and the regulations and provisions contained in the Schedule to the Railway Rates and Charges (No. 10) (Lancashire and Yorkshire Railway &c.) Order 1892 which is scheduled to and confirmed by the Railway Rates and Charges (No. 10) (Lancashire and Yorkshire Railway &c.) Order Confirmation Act 1892 shall be applicable and apply to the Company as if it were one of the railway companies named in the schedule to the Order confirmed by the said Act Provided that in respect of the conveyance of a consignment of perishable merchandise not exceeding fifty-six pounds in weight by passenger train the Company shall not be entitled to charge a higher rate than the maximum rate which they are authorised to charge for the conveyance of parcels of the same weight.

Charges for small parcels. **57.** For the conveyance on the railway of small parcels (other than perishable merchandise) not exceeding five hundred pounds in weight by passenger trains the Company may demand and take any charge not exceeding the following (that is to say) :—

For any parcel not exceeding seven pounds in weight three-pence ;

For any parcel exceeding seven pounds but not exceeding fourteen pounds in weight fivepence ;

For any parcel exceeding fourteen pounds but not exceeding twenty-eight pounds in weight sevenpence ;

For any parcel exceeding twenty-eight pounds but not exceeding fifty-six pounds in weight ninepence ;

And for any parcel exceeding fifty-six pounds but not exceeding five hundred pounds in weight the Company may demand any sum they think fit :

Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed small parcels but that term shall apply only to single parcels in separate packages.

Maximum rates for passengers. **58.** The maximum rates of charge to be made by the Company for the conveyance of passengers upon the railways including every

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expense incidental to such conveyance shall not exceed the following A.D. 1903.
(that is to say) :—

For every passenger conveyed in a first-class carriage threepence per mile ;

For every passenger conveyed in a second-class carriage twopence per mile ;

For every passenger conveyed in a third-class carriage one penny per mile ;

For every passenger conveyed on the railway for a less distance than three miles the Company may charge as for three miles and every fraction of a mile beyond three miles or any greater number of miles shall be deemed a mile.

59. Every passenger travelling upon the railway may take with him his ordinary luggage not exceeding one hundred and twenty pounds in weight for first-class passengers one hundred pounds in weight for second-class passengers and sixty pounds in weight for third-class passengers without any charge being made for the carriage thereof. Passengers' luggage.

60. The restrictions as to the charges to be made for passengers shall not extend to any special train run upon the railways in respect of which the Company may make such charges as they think fit but shall apply only to the ordinary and express trains appointed from time to time by the Company for the conveyance of passengers upon the railway. Foregoing charges not to apply to special trains.

61. The Company and any company or person lawfully working or using the railways of the Company or any part thereof by agreement or otherwise may run over and use with their engines carriages and waggons officers and servants whether in charge of engines and trains or for any other purpose whatsoever and for the purposes of traffic of every description the Southport and Cheshire Lines Extension Railway and the stations thereon including the use of the goods yards together with all roads platforms points signals water watering-places booking and other offices engines engine-sheds standing room for engines and waggons warehouses sidings loading and unloading places turntables junctions machinery electrical and other plant works and conveniences on or connected with the before-mentioned railway and station and as regards traffic of every description conveyed by them the Company may demand and take upon and in respect of the said railway the rates and charges which the Southport and Cheshire Lines Extension Railway Company are entitled to demand and take. Running powers.

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Terms of
user.

62. The terms and conditions and regulations to be observed and fulfilled and the tolls rate charges rent or other consideration to be paid by the Company or any such other company or person as aforesaid for and in respect of the use of the said railway stations sidings works and conveniences shall be such as may be agreed upon between the Company and the Southport and Cheshire Lines Extension Railway Company or failing agreement as may be determined on the application of either of the companies or persons interested by the Railway and Canal Commission.

Byelaws to
be observed.

63. In running over and using the said railway and in using the stations sidings and conveniences in accordance with the foregoing provisions the regulations and byelaws for the time being in force on the railway so used shall be at all times observed so far as such byelaws shall be applicable.

Power to
enter into
working and
traffic agree-
ments.

64. The Company on the one hand and the Liverpool Overhead Railway Company the Southport and Cheshire Lines Extension Railway Company the Cheshire Lines Committee the Great Central Railway Company the Great Northern Railway Company and the Midland Railway Company or any one or more of those companies on the other hand may subject to the provisions of Part III. of the Railways Clauses Act 1863 as amended or varied by the Railway and Canal Traffic Acts 1873 and 1888 enter into agreements and arrangements with respect to the following purposes or any of them (that is to say) :—

The working use management and maintenance of the railways or some part or parts of the railways and the conveyance of traffic thereon ;

The supply and maintenance by the working company under and during the continuance of any such agreement as aforesaid for the working of the railway of engines rolling stock and electrical and other plant necessary for the purposes of such agreement and the employment of officers and servants ;

The payments to be made and the conditions to be performed with respect to such working use management and maintenance ;

The fixing subject to the authorised maximum rates and the collection payment division and appropriation of the tolls rates and charges and other income and profits arising from the traffic on the railways or portions of railways of the contracting companies ;

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The interchange transmission forwarding and delivery of traffic coming from or destined for the railways of the contracting companies : A.D. 1903.

Provided that no such agreement shall be entered into between the Company and the Liverpool Overhead Railway Company without the sanction of the Mersey Docks and Harbour Board under seal.

65. Nothing in any agreement made under the authority of this Act shall affect the rights of His Majesty's Postmaster-General under the Telegraph Act 1878 to place and maintain telegraphic lines in under upon along over or across the railways and works comprised in the undertaking of the Company and from time to time to alter such telegraphic lines and to enter upon the land and works comprised in such undertaking for the purposes in the Telegraph Act 1878 specified and the Postmaster-General shall after the making of any such agreement be at liberty to exercise all the rights aforesaid notwithstanding that the undertaking of the Company is worked by the Cheshire Lines Committee the Great Central Railway Company the Great Northern Railway Company and the Midland Railway Company or any one or more of those companies as freely and fully in all respects as he was entitled to do before the making of any such agreement. Saving for Postmaster-General.

66. During the exercise of the running powers by this Act conferred or the continuance of any agreement to be entered into under the provisions of this Act for the working or use of the railways of the Company by any other railway company the railways of the Company and of such other company shall for the purpose of short distance rates and charges be considered as one railway and in estimating the amount of rates and charges in respect of passengers conveyed partly on the railways of the Company and partly on such other railway rates and charges may be charged as for three miles and for every mile or fraction of a mile beyond three miles as for one mile and in estimating the amount of rates and charges in respect of merchandise traffic conveyed partly on the railways of the Company and partly on such other railway the Company shall be deemed to be a company connected with the Lancashire and Yorkshire Railway Company and specified in the Schedule to the said Confirmation Act of 1892. Short distance charge in case of working agreement.

67. Notwithstanding anything in this Act or in any Act or Acts incorporated herewith the Company may out of any money by this Act authorised to be raised pay interest at such rate not Power to pay interest out of capital during construction.

[Ch. cclviii.] *Seaforth and Sefton Junction Railway* [3 Edw. 7.]
Act, 1903.

A.D. 1903. — exceeding three pounds per centum per annum as the directors may determine to any shareholder on the amount from time to time paid up on the shares held by him from the respective times of such payments until the expiration of the time limited by this Act for the completion of the works by this Act authorised or such less period as the directors may determine but subject always to the conditions hereinafter stated (that is to say) :—

(A) No such interest shall begin to accrue until the Company shall have deposited with the Board of Trade a statutory declaration by two of the directors and the secretary of the Company that two thirds at least of the share capital authorised by this Act in respect of which such interest may be paid has been actually issued and accepted and is held by shareholders who or whose executors administrators or assigns are legally liable for the same :

(B) No such interest shall accrue in favour of any shareholder for any time during which any call on any of his shares is in arrear :

(C) The aggregate amount to be so paid for interest shall not exceed twenty thousand pounds and the amount so paid shall not be deemed share capital in respect of which the borrowing powers of the Company may be exercised but such borrowing powers shall be reduced to the extent of one third of the amount paid for interest as aforesaid :

(D) Notice that the Company has power so to pay interest out of capital shall be given in every prospectus advertisement or other document of the Company inviting subscriptions for shares and in every certificate of shares :

(E) The half-yearly accounts of the Company shall show the amount of capital on which and the rate at which interest has been paid in pursuance of this section.

Save as hereinbefore set forth no interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Deposits for
future Bills
not to be

68. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any

[3 EDW. 7.] *Seaforth and Sefton Junction Railway* [Ch. cclviii.]
Act, 1903.

standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

A.D. 1903.
paid out of
capital.

69. Nothing in this Act contained shall exempt the Company or the railways from the provisions of any general Act relating to railways or to the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised by this Act.

Provision as
to general
Railway
Acts.

70. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

[Ch. cclviii.] *Seaforth and Sefton Junction Railway* [3 EDW. 7.]
Act, 1903.

A.D. 1903.

SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

DESCRIBING PROPERTIES WHEREOF PARTS ONLY ARE REQUIRED
TO BE TAKEN.

Railway.	Parish.	Nos. on deposited Plans.
Railway No. 1	Township of Netherton - -	13 14 15 16 26 28 29 35 36 37 38 41 42.
	● Township of Sefton - -	14 15 16 17 18 20 23.
	Township of Orrell and Ford -	4.
	Township of Litherland - -	7 8 9 10 11.
	Township of Seaforth - -	3 4 33 80 166 167.

THE SECOND SCHEDULE.

LANDS FOR STATIONS FOR GENERATING ELECTRICAL ENERGY.

A triangular piece of land belonging or reputed to belong to the Earl of Sefton containing 4 acres or thereabouts situate in the parish of Sefton in the fields numbered 198 and 199 on the said Ordnance map and which piece of land is bounded on the west side by an imaginary line drawn in a north-easterly direction from the point of commencement of Railway No. 2 as shown on the deposited plans to a point in the post and wire fence intersecting the said field No. 199 at a distance of 12 yards or thereabouts measured in an easterly direction from the western boundary of the said field thence turning at a right angle and running along the said fence to the eastern boundary of the said last-mentioned field and thence turning at an acute angle and running in a south-westerly direction to the point of commencement of Railway No. 2 as also shown on the deposited plans.

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